

## 26STLC00871 26STLC00871

County: los-angeles

Division: Civil Law and Motion

Department: 26

Hearing date: 2026-07-07

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Case Number: 26STLC00871 Hearing Date: July 7, 2026 Dept: 26

### TENTATIVE RULING:

Defendant Yaro Bezgubenko's Motion to Set Aside Default is continued to 08/03/2026 at 10:00 am in Department 26 at the Spring Street Courthouse. By 07/10/2026, Defendant Yaro Bezgubenko is to file proof of service of the Motion and the Notice of the New Hearing Date. Failure to do so may result in the Motion being denied.

### Analysis:

On February 9, 2026, Plaintiff Capital Resource International, Inc. ("Plaintiff") filed the instant action against Defendants Power Net Electric, Inc. ("Defendant Power Net") and Yaro Bezgubenko ("Defendant Bezgubenko"). Following Defendants' failure to file a responsive pleading, the Court entered their default on April 22, 2026 and default judgment on June 9, 2026.

Defendant Bezgubenko filed the instant Motion to Set Aside Default on June 12, 2026. However, the Motion does not include a proof of service showing it was served on Plaintiff, or that Plaintiff was given notice of the hearing date. Failure to give notice of the papers and hearing date is a violation of due process and the statutory notice requirements. (Code Civ. Proc., § 1005; Jones v. Otero (1984) 156 Cal.App.3d 754, 757.)

Accordingly, the Court continues the hearing so the Motion may be heard with proper notice to the other side.

Defendant Yaro Bezgubenko's Motion to Set Aside Default is continued to 08/03/2026 at 10:00 am in Department 26 at the Spring Street

Courthouse. By 07/10/2026, Defendant Yaro Bezgubenko is to file proof of service of the Motion and the Notice of the New Hearing Date. Failure to do so may result in the Motion being denied.

Moving parties to give notice.